

Court No. - 40

Case :- WRIT - C No. - 21075 of 2023

Petitioner :- Seema Mishra

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Seema Mishra

Counsel for Respondent :- C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

Lay before another Bench of which both of us is not a member after obtaining nomination from Hon'ble the Chief Justice.

Order Date :- 12.7.2023

Vikram

Court No. - 3

Case :- WRIT - C No. - 21075 of 2023

Petitioner :- Seema Mishra

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Seema Mishra

Counsel for Respondent :- C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Arun Kumar Singh Deshwal, J.

The petitioner, who has appeared in person, on her own calculation stated that the electricity bill for the last nine years i.e. from the date of installation of meter would be around Rs. 1,50,000/-.

This bill has been seriously disputed by the learned counsel appearing for Power Corporation. However, since the counsel for the Corporation has taken time to calculate the bill, we direct the petitioner to deposit Rs. 1,50,000/- by the next date of listing.

Put up this case as fresh on 26.7.2023.

If the deposit is made by the petitioner, the electricity connection would not be disconnected.

Order Date :- 18.7.2023

Vandana

Court No. - 3

Case :- WRIT - C No. - 21075 of 2023

Petitioner :- Seema Mishra

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Seema Mishra

Counsel for Respondent :- C.S.C., Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

1. Supplementary Affidavit, Miscellaneous Applications and instructions filed today be kept on record.

2. Aggrieved by a Bill dated 14.6.2022 by which the petitioner was charged with Rs.9,45,762.71/-, the petitioner had approached the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. When the Consumer Grievance Redressal Forum on 26.6.2023 asked the petitioner to deposit 40 per cent of the amount payable, the petitioner has approached this Court with the following prayers:

"I. issue a writ order or direction in the nature of the mandamus commanding and directing the respondent no. 4 and 5 not to disconnect the electricity connection of the petitioner and forge electricity bill dated 7.6.2023 and message on dated 20.06.2023 which was give by the respondent no. 4 by phone and before Consumer Grievance Redressal Forum Allahabad and quashed and respondent no. 4 and 5 directed to give the correct electricity bill accordance with law to the petitioner.

II. Issue any other writ order or direction which this hon'ble Court may deem fit and proper under the facts and circumstances of the case.

III. Award cost in favour of the petitioner throughout."

3. We find from the record that the petitioner had already approached the Consumer Grievance Redressal Forum and that on 26.6.2023, the Consumer Grievance Redressal Forum has directed the petitioner to pay 40 per cent of the amount which was payable.

4. We find that the adjudication before the Consumer Grievance Redressal Forum has yet to take place. The petitioner has

already deposited Rs. 1,50,000/- under orders of this Court dated 18.7.2023.

5.We consider the deposit made by the petitioner as sufficient deposit for the time being so as to give the petitioner continuous electricity supply. The petitioner would pay the bill which would be generated from time to time. To that extent, the order of the Consumer Grievance Redressal Forum dated 26.6.2023 stands modified.

6.The Consumer Grievance Redressal Forum in the meantime may decide the dispute on merits within a period of three months.

7.With these observations, the writ petition is disposed of.

Order Date :- 26.7.2023

PK

(Manoj Bajaj,J.) (Siddhartha Varma,J.)